'no-trust vote' from the people at large.

I was an eyewitness to a review meeting (on 14 November 2006) of chief secretaries/administrators and directors general of all states/union territories called by the Union home secretary for discussing the follow-up of a landmark judgement delivered by the Supreme Court of India on police reforms (a national issue after the November 2008 Mumbai terrorist strikes, which we have termed as 'terror war') on 22 September 2006. One of the items on the agenda was 'to review the implementation status of the directions given by the Hon'ble Supreme Court in the judgement dated 22.09.06 and issues related thereof'.

The Union home secretary began by asking what each state government thought of the apex court's directions.

Here is short recap of those directions: (1) Formation of a State Security Commission (which includes the home minister, the relevant bureaucrat, the police chief, the leader of the Opposition and a few members of civil society as essential components of exercising external oversight and providing a long-term vision). (2) Selection and minimum tenure of the DGP (to insulate the post from partisan, political and bureaucratic selections and provide fearless and secure leadership). (3) Fixing minimum tenure of the IG of police and others (to ensure continuity, security and better accountability for rank and file as well). (4) Separation of investigation from law and order (for focused investigation and reversing the falling conviction rate). (5) Setting up of a Police Establishment Board (for internal grievance redressal as well as for better personnel policies). (6) Creating a Police Complaints Authority (for raising accountability) at the state and district levels. (7) Establishing a National Security Commission (for objective selection of police chiefs at the Central Government level, comprising the leader of the Opposition and external experts in the field of national security).

Had these directions been implemented, they would have insulated police leadership from the prevailing negative political and bureaucratic interference to a considerable extent and raised police accountability, apart from enabling a host of other long-pending reforms, including oversight by civil society and their participation in policing. (Ironically, there was a public outcry for these police reforms after the November 2008 Mumbai terror attacks.)

One by one each state chief secretary termed the apex court's directions as an 'infringement' on the powers of the executive. They resoundingly proposed that the Central Government and the state governments should consider going on appeal against this judgement. The police chiefs did not voice their opinions, but merely endorsed the views of their bosses (the chief secretaries). Not one of them had the courage to express his viewpoints independently as leaders of the police force. It was truly disgusting. For one never expected all of them to fall in line (barring one individual who was then DGP, Karnataka).

This meeting and the manner in which it was conducted by the home secretary were orchestrated for a purpose. Which was to have views on record to show the national opposition to the directions and that the Central Government (meaning the Union Ministry of Home Affairs) could not do much.

This occasion provided me direct access to the manipulations at the highest level and the mischievous and callous manner in which the top leadership responded to the directions of the highest court of the country. All this left me bitter and powerless.

But I still did not give up. I emphasized in the same meeting that by this attitude we were abnegating our responsibility and history would not forgive us. I later brought this matter to the notice of the Union home minister, but to no avail. (He eventually paid the price for his lack of understanding and neglect.)